

Om Prakash Gautam v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 25 January 2021 · Writ-C No. 26065 of 2020 · Writ-C No. 26065 of 2020
· **Writ disposed; petitioner relegated to CGRF under Clause 7.10(iii).**

HEADNOTE

A consumer's writ seeking to quash a Section 135 theft assessment and recovery citation, on the plea that the final assessment was never served, was disposed without examining the merits. Liberty was granted to move the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005 within three weeks; if moved, the representation was to be decided by a reasoned speaking order after hearing, with no coercive steps meanwhile, and with liberty to recover if no representation was filed.

FACTUAL SUMMARY

Om Prakash Gautam challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s theft assessment and recovery after a 9 July 2019 premises check at Dibai, a Section 135 FIR, a 2 September 2019 provisional assessment (Patrank 2346, Vidyut Chori), and a 26 February 2020 final assessment. He said the final order was never served and recovery proceeded on the provisional demand. The licensee maintained both assessments were known to him and that disconnection or bill grievances lay before the Consumer Grievance Redressal Forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iii)

CGRF representation on s.135 theft assessment

HOLDING

A writ challenging a Section 135 theft assessment and recovery citation may be disposed without examining the merits by granting liberty to move the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005 within a fixed time, directing a reasoned speaking order after hearing, staying coercive steps during that proceeding, and leaving the licensee free to recover if no representation is filed. ¶ 1

PRINCIPLE TAGS

s135-demand-writ-disposed-by-representation-and-restoration The Court disposed the Section 135 theft-assessment writ by relegating the consumer to a Clause 7.10(iii) CGRF representation rather than quashing the demand, staying coercive recovery during that proceeding without directing restoration of supply. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FINAL ASSESSMENT WAS SERVED AND WHETHER RECOVERY ON A PROVISIONAL ASSESSMENT WAS ILLEGAL

The consumer's service and provisional-recovery pleas were not examined on merits. ¶ 1

NOT DECIDED — MERITS OF THE SECTION 135 FIR AND THE THEFT ASSESSMENT

¶ 1

NOT DECIDED — WHETHER THE CGRF UNDER CLAUSE 7.10(III) HAS JURISDICTION OVER SECTION 135 THEFT-ASSESSMENT AND RECOVERY DISPUTES

The Court accepted the licensee's 7.10(iii) route without deciding forum competence. ¶ 1

